Alabama Rules of Criminal Procedure

Rule 19. Trial.

Rule 19.4. Duties of court reporters.

(a) In all capital cases (criminal trials in which the defendant is charged with a death penalty offense), the court reporter shall take full stenographic notes of voir dire of the jury and of the arguments of counsel, whether or not such is ordered by the judge or requested by the prosecution or defense. This duty may not be abrogated by the judge or waived by the defendant.

(b) In all noncapital cases, the court reporter shall take full stenographic notes of the voir dire of the jury and of the arguments of counsel if directed to do so by the judge.

Committee Comment

This rule is effective notwithstanding contrary provisions in Ala.Code 1975, § 12-17-275, and notwithstanding cases citing § 12-17-275.